International Law

TOPIC 1: WHAT IS INTERNATIONAL LAW (PART A)

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Unit Convenor LAWS2000/LAWS8015

LAWS2000 / LAWS8015

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Introduction by the Unit Convenor

ABOUT ME

Education

Bachelor of Laws: University of Montreal
Member of the Quebec Bar
Master of Strategic Studies, Australian National University
PhD, Australian National University
Postdoctoral Fellow, Munk School of Global Affairs and Public Policy (University of Toronto)
Postdoctoral Fellow, Max Planck Institute, Department of Ethics, Law and Politics.

Work

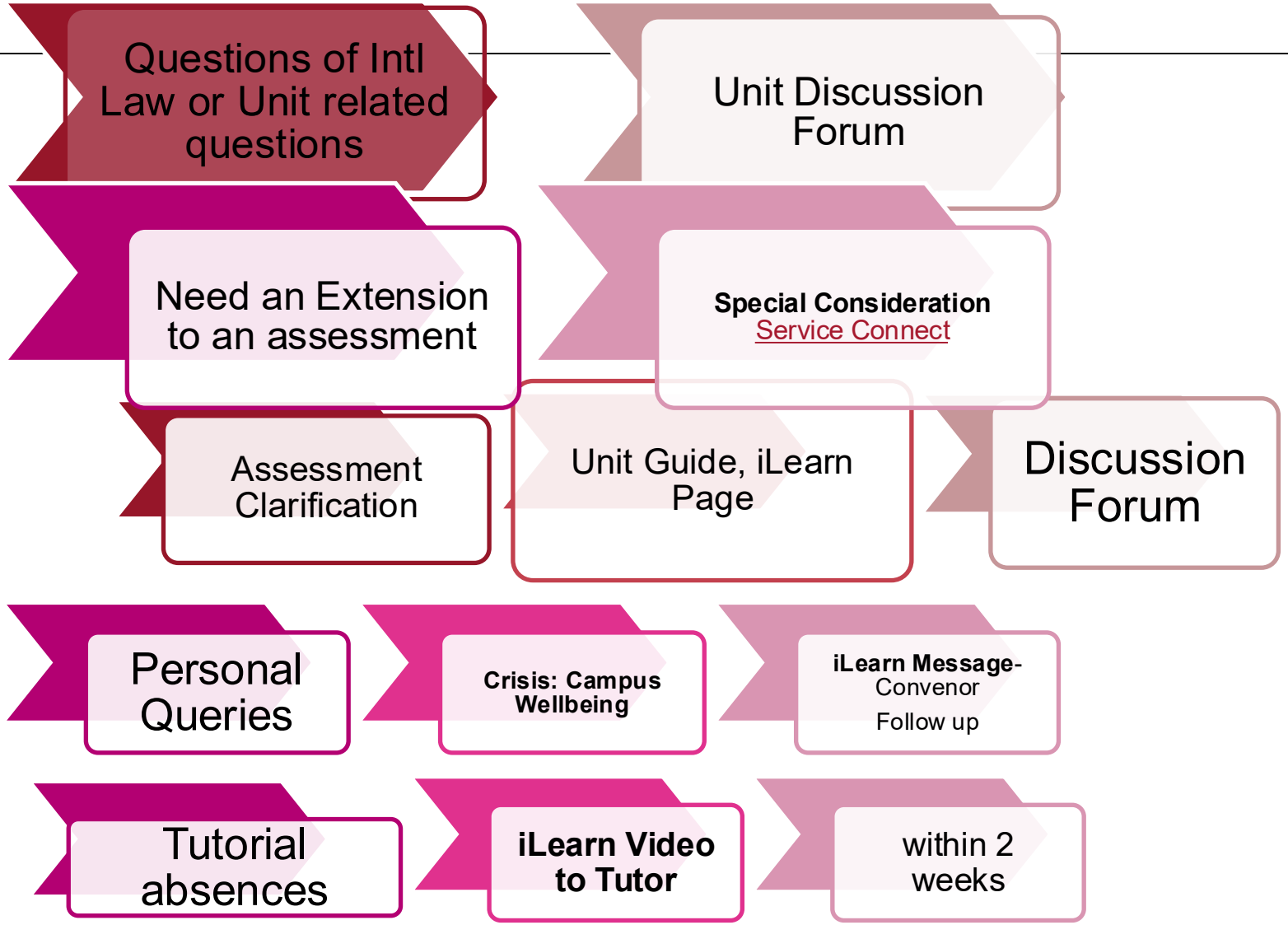
International Labour Organisation, Turin, Italy
Research Fellow, UNSW, "Leveraging Power and Influence on the UN Security Council".
Research Fellow, ANU "Strengthening the Rule of Law through the UN Security Council“
Security Council Report, New York

MACQUARIE University
SYDNEY·AUSTRALIA

STRUCTURE

1. Introduction
2. Sources of International Law
3. Law of Treaties
4. Subjects of International Law and Statehood
5. Relation between IL and National Law and Jurisdiction
6. Immunities
7. State Responsibility
8. International Dispute Settlement
9. Use of Force
10. Collective Security
11. International Criminal Law
12. Human Rights and Revision

QUESTIONS


Questions of Intl Law or Unit related questions
Unit Discussion Forum
Need an Extension to an assessment
Special Consideration
Service Connect
Assessment Clarification
Unit Guide, iLearn Page
Discussion Forum
Personal Queries
Crisis: Campus Wellbeing
iLearn Message- Convenor Follow up
Tutorial absences
iLearn Video to Tutor
within 2 weeks

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- PART A: Defining International Law
- PART B: A Brief History

PART A

DEFINING INTERNATIONAL LAW

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International Law

DEFINING INTERNATIONAL LAW

"Public international law consists of rules and principles which facilitate the conduct of states and international organisations in their relations with one another and, in some cases, with individuals, groups and transnational companies."

Office of International Law, Attorney-General's Department, Australian Government

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International Law

DEFINING INTERNATIONAL LAW

"…international law by definition is universally applicable and authoritative for all States. States recognise international law as 'law' by voluntarily consenting and adhering to agreed standards. …

Australian lawyers practice international law before Australian courts [and before international courts]. Their practice can include holding Australia to account for its international obligations [or promoting Australia's interests in the international fora]…"

The Practitioner's Guide to International Law (2nd Edition, 2014)

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The Permanent Court of International Justice, *The Lotus Case*

"International law governs relations between independent States. The rules of law binding upon States therefore emanate from their own free will as expressed in conventions or by usages generally accepted as expressing principles of law and established in order to regulate the relations between these co-existing independent communities or with a view to the achievement of common aims. Restrictions upon the independence of States cannot therefore be presumed".

- S.S. Lotus (Fr. v. Turk.), 1927 P.C.I.J. (ser. A) No. 10 (Sept. 7), para 44.

International Law

DEFINING INTERNATIONAL LAW

The way you tell the time



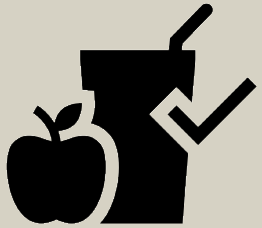
- Final Act of the International Meridian Conference, 1884

The cars you drive & their functions



- Global Technical Regulations for Wheeled Vehicles 1998
- Constitution of the International Telecommunications Union, 1865, Space Treaty 1967

Products & Food



- Uruguay Round Agreement, World Trade Organization Treaty System & related Instruments

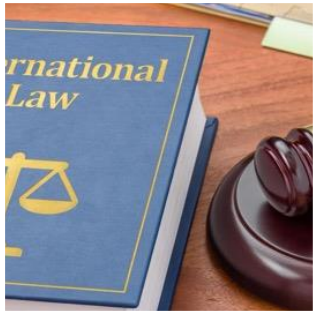
This lecture! (internet & cloud services)



- Law of the Sea Convention,
- Convention for the Protection of Submarine Telegraph Cables

International Law

DEFINING INTERNATIONAL LAW



'General' International Law

- Sources
- Treaty Law
- Statehood & Recognition
- Jurisdiction & Immunities
- Diplomatic Protection
- State Responsibility
- Peaceful Settlement of Disputes



'Special' International Law

- Use of Force & Law of Armed Conflict
- International Criminal Law
- International Human Rights Law
- International Law of the Sea
- International Air & Space Law
- International Environmental & Climate Change Law
- International Energy Law
- International Trade Law
- International Investment Law
- International Health Law

Issues of Shared Concern (issues *of global/transboundary nature*)

Pandemics/epidemics, access to medicines & vaccines
What else?



World Health Assembly adopts historic Pandemic Agreement to make the world more equitable and safer from future pandemics

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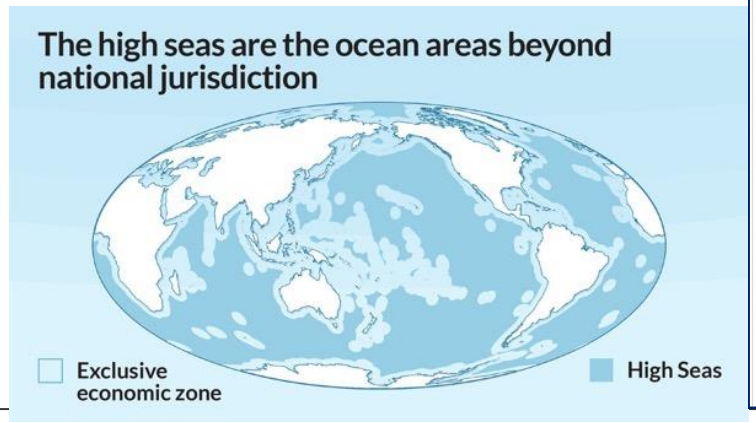
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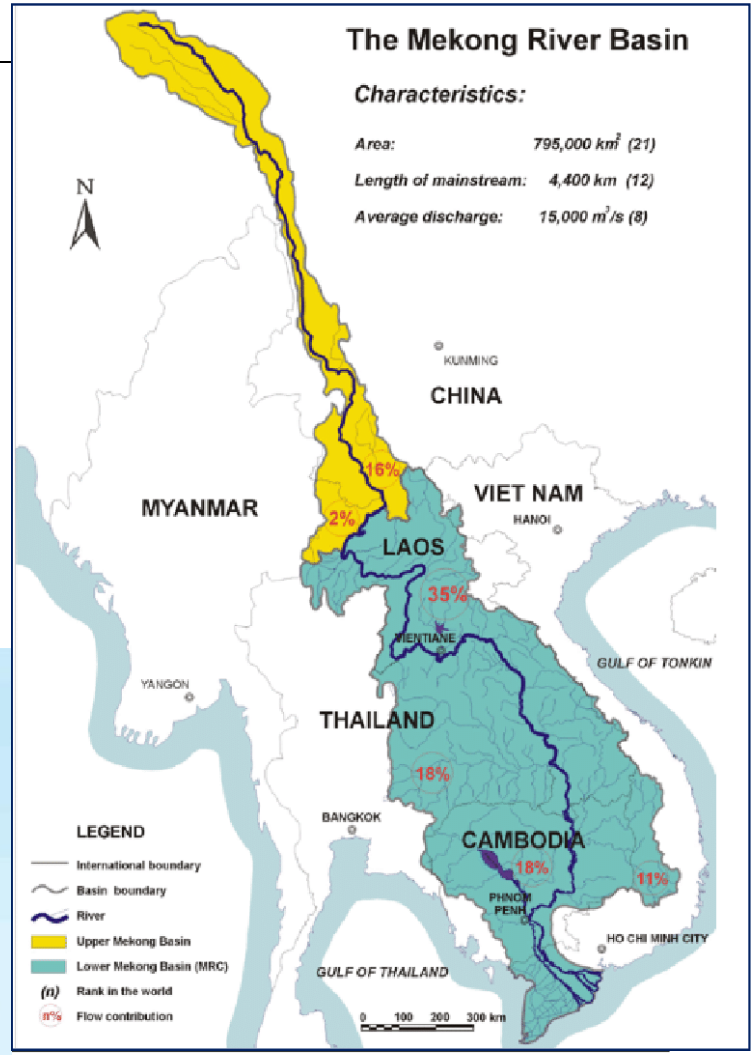
International Law

DEFINING INTERNATIONAL LAW

Issues of Shared Concern (issues *of global/transboundary nature*)

Two potential routes:
‘the nationalist route’
'the internationalist route’
(increasingly more efficient)





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International Law as a Living Process

- A process of continuous interaction between States grounded into practices or expectations of sovereign governments. It changes and evolves as those practices and/or expectations are changed by the existence of new interests and technologies.

- A process in which certain rights are asserted, and duties relied on by reference to norms based on express agreements or custom.

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International Law

DEFINING INTERNATIONAL LAW

Example: Progressive Development of International Environmental Law as a separate discipline of international law

United Nations

- ***UN Conferences*** (e.g. 1972 UN Conference on the Human Environment)
- ***UN Programs*** (e.g. UN Environmental Program),
- ***UN Special Agencies*** (e.g. Food and Agriculture Organisation)
- ***UN General Assembly*** (e.g. Rio Declaration on the Human Environment, 1992).
- **Kyoto Protocol (1997)**
- **United Nations Framework Convention on Climate Change (UNFCCC) (1992)**
- **Paris Agreement (2015)**

binding



Advisory Opinion on *Obligations of States in respect of Climate Change*, ICJ, 2025.

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International Law

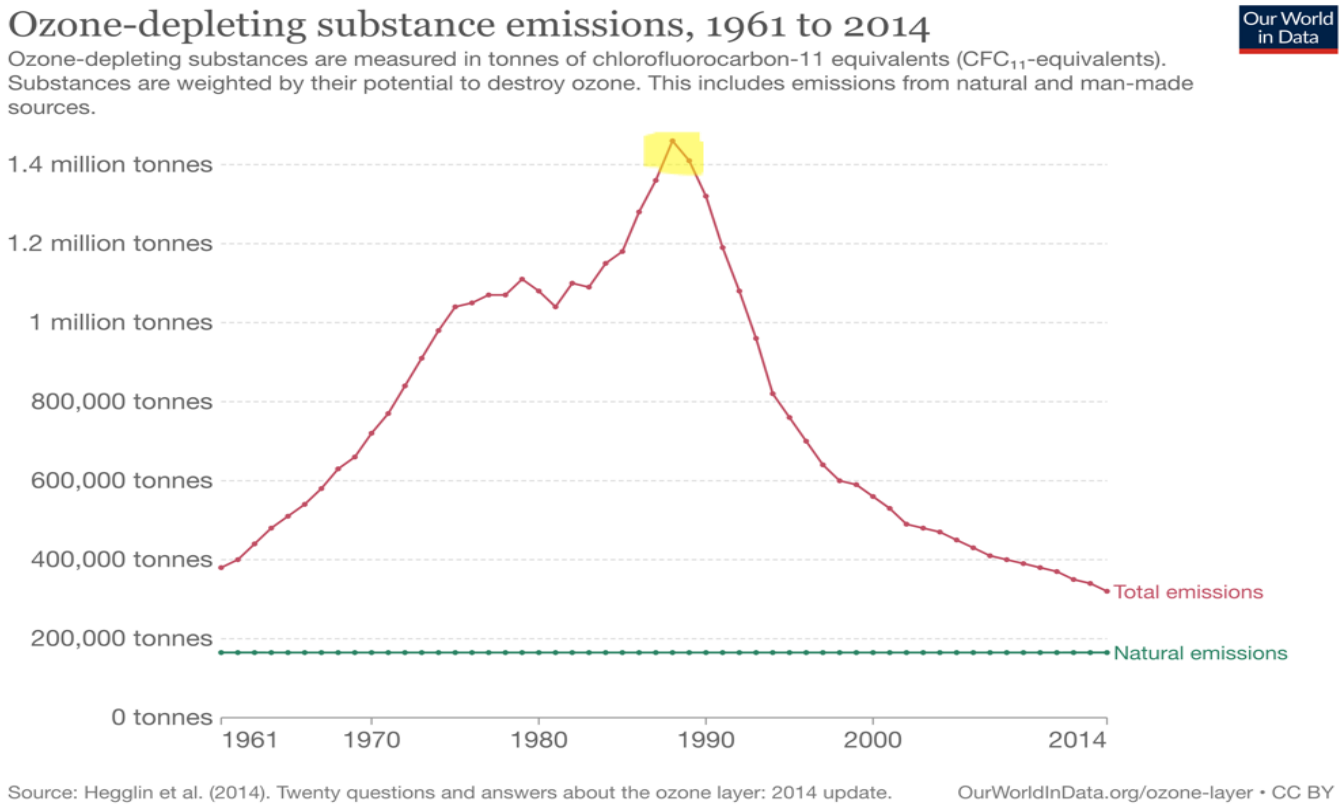
DEFINING INTERNATIONAL LAW

Empirical Response:

Look at the numbers

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Emissions of Ozone Depleting Substances over Time



- 1985 Vienna Convention for the Protection of the Ozone Layer (entered into force **1988**)
- 1987 Montreal Protocol on Substances that Deplete the Ozone Layer (entered into force **1990**)
- UN 2023: *"The ozone layer is on track to recover by 2040."* https://news.un.org/en/story/2023/01/1132277

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International law is different from national legal systems.

Unlike in a domestic legal system…

- there is is no universally compulsory procedure for the settlement of international disputes.
- there is neither a legislative nor an executive branch in the international legal system. International law rules become legally binding when there is sufficient consensus & practice among states to generate a rule of customary international law or when states agree to be bound by a treaty.
- sovereign States are the makers of international law & its 'enforcers' (if, when they choose so). However, 'enforcement' is irrelevant to the binding quality of international law as a system of law.

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International Law

DEFINING INTERNATIONAL LAW

- States choose to operate within the system of international law not necessarily because the system itself is peremptory, but because it is **necessary** if anything meaningful is to be achieved.

- ***"…the basis of obligation is the same in every legal order: a consciousness among the subjects that this order is needed if one is to reach a common end"*** Hoffman (1987)

- compliance comes from fear not of sanction but "**loss of reputation"** which leads other states to exclude that state from future opportunities to cooperate, Chayes & Chayes (1995)

- **Quasi Enforcement:** Membership/Participation in international organizations and agencies is contingent on **compliance & trust** (Articles 5 & 6, UN Charter, suspension or expulsion from membership; International Monetary Fund & World Bank can exert some economic leverage over members conduct)

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Violations of International Law Still Occur

- **Examples:**
  - Occupation of territories
  - Use of force; Targeted killings
  - Disrespect of treaties

- **Challenges:**
  - International law is often invoked as a justification for departing from rule of law commitments.

"No one in this Great Hall of Justice is starry-eyed about international law, but it is what we have." – *Philippe Sands*

- **Perspective:**
  - Just as crimes occur within national legal systems without destroying them, frequent assaults on international law do not invalidate its legitimacy.
  - The vast majority of states abide by their obligations.
  - Justice is possible, even if the wheels of international justice turn slowly.
  - Huge progress in the international community so far, especially in the field of shared responsibilities and regimes on environmental protection, natural resources, and public health.

PART B

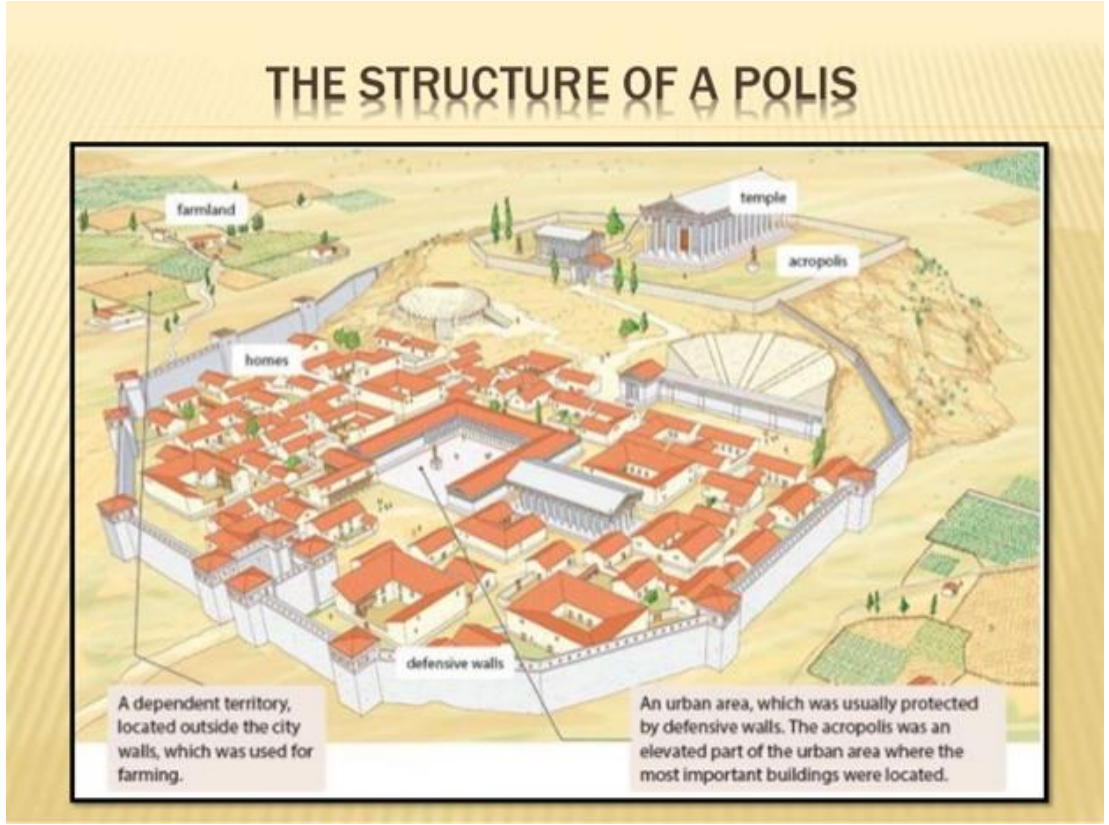
A BRIEF HISTORY OF INTERNATIONAL LAW

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International Law

A BRIEF HISTORY

- ***'Nomos'* Ancient Greece** (the idea of restricting natural freedoms for the sake of expediency and self-interest)
- *"Jus naturale…Jus civile…"* ***Ancient* Roman Law**
- **Thucydides,** History of Peloponnesian War
- *"Right, as the world goes, is only in question between equals in power, while the strong do what they can and the weak suffer what they must."*
- **"Sovereign Equality" (Art 2 UN Charter)**



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International Law

A BRIEF HISTORY

Early modern international law

- Europe, late Middle Ages (15th and 16th centuries)
- Political and religious forces: Holy Roman Empire & the Catholic Church
- Theories of natural law (***Jus Naturale***): intrinsic values that govern relations between individuals and their social surrounding. Universal and applicable across time and place.
- ***Jus gentium***: rules of law common to all nations

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International Law

A BRIEF HISTORY

Early modern international law (cont.)

- Colonialism
- Francisco de Vitoria (1483–1546) : the waging of war against the natives of the New World was not justified under natural law.
- 17th and 18th centuries: dawn of a modern international legal system (clearer distinction between jus naturale and jus gentium)
- Jesuit Francisco Suárez (1548–1617): *A Treatise on Laws and God the Lawgiver*
- Hugo Grotius (1583–1645): *The Freedom of the Seas* and *On the Law of War and Peace*
- Emmerich de Vattel (1714–1767): *Law of Nations*

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International Law

A BRIEF HISTORY

Peace of Westphalia 1648

- ‘Beginning’ of the international state system
- Peace of Munster and the Treaties of Munster and Osnabruck
- The idea was to organise territory and individuals into sovereign states
- Need for a system that contained a clear source of authority
- Birth of the notion of ‘sovereignty’

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International Law

A BRIEF HISTORY

The 19th century

- ***Positivism*:** the only true source of law is State will. Not fairness, not divine justice but consent to be bound by a legal obligation.
- States can choose which legal obligations they are bound to.
- 1865 International Telegraph Union
- 1874 Universal Postal Union
- 1856 Declaration of Paris: set legal limits to the capture of private property at sea
- 1868 Declaration of St Petersburg: banned the use of explosive bullets.
- Hague Conferences in 1899 and 1907: led to the adoption of conventions on the conduct of war and established a Permanent Court of Arbitration.
- Colonialism continues… at the outbreak of the World War I in 1914, 90 per cent of Africa was under European control.

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International Law

A BRIEF HISTORY

The Interwar Period

- **1919:** Creation of the League of Nations
- **1928:** Treaty of Paris (also known as the Kellogg–Briand Pact) established an obligation that states should refrain from going to war as a means of settling their international controversies and as an instrument of national policy.
- **1920:** Permanent Court of International Justice (PCIJ), (*dissolved in 1946 , now International Court of Justice (ICJ))

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International Law

A BRIEF HISTORY

The period after the end of the Second World War

- **1945-1946:** Nuremberg Trials prosecuting top German officials for international crimes
- **1946**: League of Nations was replaced by the United Nations (UN)
- UN Charter: Respect for the principle of equal rights and self-determination of peoples and on the sovereign equality of all UN member states; ban on the use of force
- UN Security Council & General Assembly
- **1946:** International Law Commission (ILC) to promote the 'progressive development of international law and its codification'
- **1960:** Declaration on the Granting of Independence to Colonial Countries and Peoples

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